

The complaint

Ms R is unhappy that the National Farmers' Union Mutual Insurance Society Limited (NFU) - the underwriter of her home insurance - declined a claim for storm damage.

What happened

In August 2019, Ms R made a claim for storm damage when water began to enter her property through her porch roof. Ms R didn't pursue the claim and instead arranged and paid for repairs to the roof herself.

In August 2020, Ms R made a second claim for storm damage. She said water had entered her porch from a different place in the roof. NFU's loss adjuster concluded there were no signs of storm damage but that the roof covering was in a fatigued and poor condition, there were signs of poor workmanship and wear and tear. The loss adjuster also noted water stains on Ms R's living room ceiling. NFU declined Ms R's claim.

Ms R complained to NFU because she felt her claim had been rejected unfairly. She said its loss adjuster told her he would've approved the claim if there was either a storm, explosion or fire. And she said her roof was well-maintained despite the loss adjuster telling her that there were some chipped tiles. She also said her porch roof first began leaking during the previous year after an exceptionally bad storm. She said she'd called NFU about it and it told her to provide a minimum of two quotes for repairs. Ms R said she could only get one quote and because of this - and because her builder needed to remove tiles to trace the damage - she'd instructed him to carry out the repairs at the same time and paid for them herself. She said that NFU had recently told her it could've worked on her first claim with one quote, which Ms R was disappointed about.

Ms R asked NFU for a copy of its loss adjuster's report on her second claim. Ms R sent NFU photos of the damage and a report from a local builder which said storm and rain had caused the damage to the roof. Ms R contacted NFU to explain that the damage noted in its report to her living room ceiling was not connected to the claim.

NFU's final response letter (FRL) to Ms R's complaint said that the ingress of water was due to the poor condition of the roof and could not be attributed to storm damage. It said it wouldn't pay her claim. NFU said it was still reviewing Ms R's contractor's report and would contact her to discuss it further.

Ms R contacted us. She told us about her first claim for storm damage and NFU telling her to get three quotes and paying the costs herself. She said another storm had caused water to ingress into her porch through the roof from a different place and she'd sent NFU two quotes for repairs. She said her roof was well-maintained, that there'd been no other water ingress to her property and it was untrue for NFU to say water was coming into her living room.

Ms R also told us the first leak was "*repaired by a DIY guy*" because she'd been unable to find a roofer and that the marks on her living room ceiling had been caused by smoke from her log burner and candles. She said as well that the loss adjuster told her he'd have approved her second claim if she had a receipt for the repairs to the roof she paid for.

Our investigator didn't uphold Ms R's complaint because he didn't think NFU had acted unfairly in rejecting Mrs R's claim. Ms R didn't agree with our investigator's view.

Ms R provided a list of specific and named storms that had occurred in the UK during 2019 and 2020. She disputed there'd been poor workmanship because the repairs had stopped the earlier leak. She said after she'd challenged the cause of the marks to the living room ceiling "*it has changed from water stains to moisture*" and that if it had been moisture, there would be black mould. Ms R said she paid cash for the earlier repairs to keep costs to a minimum because NFU refused to help her.

Our investigator told Ms R he wouldn't be changing his view. Ms R responded saying builders working on her property around the time of the second leak had to down tools because of the severe weather. And that despite her builders boarding up and sealing parts of her property with black polythene, water was still able to get in.

Ms R said the weather reports our investigator relied on confirmed storms took place. She said the exposed location of her property and the high rainfall would've meant the readings at her property would've been higher than the readings from the weather station referenced in our weather reports, which were taken from a weather station five miles away.

Ms R said there was no sign of moss or debris on her roof, so it was well-maintained and that there'd been no mention of the roof being in poor condition when it was inspected six years ago when she'd bought the property.

Ms R said the loss adjuster's report was incorrect. It mentioned one length of lead flashing indicating poor workmanship, when it was common practice to install lead in this way when her property was built. And that, if slightly chipped tiles were faulty, then her whole house would be "*like a sieve*" but water had only entered through her porch. She said the report mentioned mortar drawing moisture into her porch, when it was water and not moisture leaking in. She said there were no broken or smashed tiles on the ground despite the report mentioning loose mortar and debris. Ms R said a tile had been displaced by the storms which had allowed water to enter her porch. She also said there is no mention of storm damage exclusions in her policy.

Our investigator didn't change his view. He issued a second view addressing - but not upholding - Ms R's complaint points about NFU's request for quotes and her conversation with NFU's loss adjuster about the invoice for repairs. Ms R didn't agree with the view and asked for an ombudsman's decision.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Ms R has raised other complaint points relating to the pricing of her cover, which I understand are being investigated by this service as a separate complaint. So this decision will only concern Ms R's complaint about her storm damage claim.

When we consider a storm claim, we look at whether there was a storm, whether the damage there's been is consistent with storm damage and - if there is damage consistent with a storm - whether the storm was the main cause of that damage.

There's some dispute about the weather conditions at Ms R's property in the run up to her second claim. So rather than consider whether there was a storm, I've first considered

whether the damage seen to Ms R's roof is consistent with storm damage. And I don't think it is.

When this service considers the cause of storm damage, we usually rely on expert opinion as to the cause of the damage. So I've reviewed NFU's expert's report and the expert report provided by Ms R.

NFU's photos show some chipped tiles and what appears to be loose mortar sitting in the lead valleys of the roof. The photos also show gapping between the lead flashing on the roof where it has come away from the mortar alongside it. NFU's report said the damage it had seen wasn't storm damage but was consistent with wear and tear and poor workmanship, which doesn't seem unreasonable given the damage shown in NFU's photos of Ms R's roof.

Ms R's expert report says that storm and rain have caused damage to Ms R's property with water coming through the ceilings and down the walls from lead valleys and temporary repairs to the tiles and felt. It said tiles had come off the roof in high winds, puncturing the lead valleys, and that roofing felt had been damaged, which had led water to penetrate through. But Ms R's report doesn't include any photographs. And the photos I've seen, don't show the storm damage Ms R's expert describes, because I can't see missing tiles, damaged roofing felt or lead valleys that have been punctured.

So Ms R's expert's report gives me no reason to doubt NFU's expert's findings that there was no sign of storm damage to Ms R's roof and that the damage had been caused by poor workmanship and wear and tear.

But Ms R says that there were mistakes in NFU's report. So its findings can't be relied on. But I don't think the mistakes Ms R has pointed out are material enough to undermine NFU's finding that there is no storm damage to her roof. NFU's photos appear to support its findings and Ms R's expert testimony hasn't given me cause to doubt NFU's conclusions.

I'm not persuaded then that NFU was wrong in concluding that there was no storm damage to Ms R's roof and only damage caused by poor workmanship and wear and tear. The terms of Mrs R's cover set out that damage which happens gradually and damage caused by faulty workmanship is excluded from cover. So I don't think NFU were unfair or unreasonable in declining Ms R's second claim for storm damage.

I don't think the damage to Ms R's property would be covered by her accidental damage cover either because damage caused by faulty workmanship is excluded. And damage caused by wear and tear and which happens gradually is listed as "*Excluded Risks*", so wouldn't be covered either.

NFU say that its standard practice to ask for two quotes and confirmed that it had only asked Ms R for two quotes when Ms R made her first claim. I've listened to a call recording from around the time Ms R made her first storm claim where estimates are discussed. NFU asks Ms R if she could take some photos of the damage and get someone down to say if there is damage to the roof. NFU doesn't specify a precise number of quotes Ms R should get but rather "*some estimates for repair*" after which "*it could take it from there*".

I've listened to a call recording from November 2019 around three months after Ms R made her first claim. NFU asks Ms R whether she wants to continue with the claim she'd made in August. Ms R says that when she got someone to take a look at the roof they needed to take it apart to have "*a look at it all*" and because she couldn't give NFU the two quotes it'd asked for, she just went ahead and paid for it herself. The call handler explains that "*normally if you find it really, really hard to get a second estimate...we could probably try and work with the*

one". Ms R says *"yeah, I did know that you see...it's all done and dusted now"* and confirms she'd like to withdraw the claim.

I don't think NFU acted unreasonably here. Ms R confirmed to NFU that she knew it could've worked with her with one estimate before she withdrew the claim. I also think it's reasonable for NFU to have expected Ms R to get in touch with it if she was experiencing difficulties in getting the information she thought it needed, before going ahead with the repairs. NFU also spoke to Ms R within three months of her making her claim to find out if she wanted to continue with it, which I think is reasonable.

I also don't think Ms R proving she'd paid for repairs after making her first claim would have led to NFU approving her second storm claim. NFU's investigation concluded that the damage wasn't caused by a storm. And I don't think an invoice for earlier repairs would've caused NFU to reach a different conclusion that would have led to it paying her second claim. And there is no evidence of the costs Ms R says she paid for, so it wouldn't be reasonable for me to instruct NFU to reimburse her for them.

There is no record of any dialogue between Ms R and the loss adjuster, so I've looked at other evidence to decide whether I think - on balance - NFU's loss adjuster misled Ms R here by telling Ms R that proof of payment for earlier repairs would mean approval of her second claim. And I don't think he did. NFU instructed its loss adjuster to carry out a survey of the roof, which included taking photos and Ms R said this conversation happened just before the loss adjuster put his final report together for NFU. So it's reasonable to expect that the loss adjuster would've known he'd need to consider more than just an invoice for earlier repairs – such as the photographs of the roof - when deciding whether NFU should pay Ms R's claim. So whilst it's possible Ms R and the loss adjuster may have perhaps discussed the repairs she'd paid for and whether there was an invoice for them, I'm not persuaded NFU's loss adjuster would've gone as far as telling Ms R that proof of payment for earlier repairs would mean approval of her second claim. So I can't say that NFU's loss adjuster acted unreasonably here.

In summary, because I don't think it was unreasonable for NFU to have declined Ms R's second claim for storm damage and because I don't think NFU have acted unreasonably towards Ms R, I won't be upholding her complaint.

My final decision

I do not uphold Ms R's complaint. Under the rules of the Financial Ombudsman Service, I'm required to ask Ms R to accept or reject my decision before 26 October 2021.

Ruth Peek
Ombudsman